CUEVAS SPEECH & LANGUAGE THERAPY · AUSTIN, TEXAS · TX LICENSE #72841

# Cuevas Speech & Language Therapy — Master Clinical Services Agreement & Guarantor Attestation

Pediatric Clinical Intake, Legal Guarantor Attestation, HIPAA Disclosure & Attendance Policy

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## CUEVAS SPEECH & LANGUAGE THERAPY, PLLC — AUSTIN, TEXAS

Physical Clinic: 3410 Far West Blvd, Suite 280, Austin, TX 78731 · Phone: (512) 555-0182 · Fax: (512) 555-0183

Clinical Director: Issa Cuevas, M.S., CCC-SLP · Texas State License #72841 · NPI #1982736450

This Master Clinical Services Agreement & Patient Guarantor Attestation ('Agreement') is entered into by and between Cuevas Speech & Language Therapy, PLLC ('Clinic') and the undersigned Parent, Managing Conservator, or Legal Guardian ('Legal Guarantor'), acting on behalf of the minor pediatric patient ('Patient').

## ARTICLE I: CLINICAL SCOPE OF PRACTICE & THERAPY DESIGNATION

- 1.1 Comprehensive Clinical Scope: The Clinic provides specialized pediatric diagnostic evaluations and therapeutic interventions, including articulation therapy, receptive and expressive language intervention, childhood apraxia of speech (CAS), pragmatics/social cognitive development, fluency disorders, and pediatric sensory-based feeding therapy.
- 1.2 Individualized Treatment Plans: Therapy frequency, duration (typically 30-minute, 45-minute, or 60-minute clinical units), and clinical modalities are established exclusively following a licensed speech-language pathologist evaluation and formal diagnostic baseline assessment.
- 1.3 Multi-Disciplinary Coordination: The Legal Guarantor authorizes the Clinic to exchange relevant clinical notes, IEP summaries, and developmental histories with the Patient's designated Primary Care Physician (PCP), pediatric ENT, occupational therapists, and school speech pathologists to ensure continuity of care.

## ARTICLE II: DESIGNATION OF LEGAL FINANCIAL GUARANTOR

- 2.1 Sole Guarantor Liability: The individual signing this Agreement affirms that they possess legal guardianship or custodial rights to consent to medical and speech-language therapy for the minor Patient. The signing adult is designated as the sole Legal Guarantor personally liable for all fees incurred for professional services rendered.
- 2.2 Private-Pay Designation: Cuevas Speech & Language Therapy operates as an out-of-network private-pay clinic. Payment in full is due at the time services are rendered or per the agreed monthly automatic billing schedule. The Clinic does not bill commercial health insurance carriers directly.
- 2.3 Third-Party & Custody Non-Involvement: The Clinic is not a party to domestic relations decrees, custody agreements, divorce settlements, or split financial arrangements between parents. The Legal Guarantor who executes this intake agreement remains strictly responsible for timely settlement of all clinical account balances regardless of third-party indemnification orders.

## ARTICLE III: ATTENDANCE, ILLNESS DISCLOSURE & $75 RESERVED CLINICAL HOUR POLICY

- 3.1 Dedicated Clinical Hour Reservation: Because pediatric speech therapy requires dedicated clinical room preparation, specialized diagnostic materials, and individual therapist reservation, appointment times are reserved exclusively for the designated Patient.

- 3.2 Strict 24-Hour Cancellation Requirement: Unscheduled missed sessions without at least twenty-four (24) hours advance written notice (via secure clinic email or official text notification) are subject to the reserved clinical hour fee of $75.00.
- 3.3 Clinical Fee Justification: The Legal Guarantor acknowledges that the $75.00 charge is a professional reserved clinical hour fee reflecting committed clinical overhead and therapist scheduling, and is not an administrative penalty. Third-party insurance carriers do not reimburse missed session fees; this amount is the direct personal responsibility of the Legal Guarantor.
- 3.4 Pediatric Illness Disclosure Protocol: To protect immunocompromised pediatric patients, children exhibiting symptoms of fever (>100.4°F without antipyretics within 24 hours), vomiting, contagious rash, or active respiratory infection must not attend in-person clinic sessions. Where medically appropriate and requested before 8:00 AM on the day of the session, the Clinic will convert the reserved hour to a HIPAA-compliant telepractice session with no cancellation fee assessed.
- 3.5 Habitual Attendance Standards: Therapy progress relies on consistent weekly attendance. Patients missing three (3) consecutive sessions or failing to maintain an 80% monthly attendance rate may have their recurring preferred time slot released to families on the clinic waiting list.

## ARTICLE IV: HIPAA PEDIATRIC PRIVACY DISCLOSURE & CONFIDENTIALITY

- 4.1 Federal & State Privacy Standards: The Clinic adheres strictly to the Health Insurance Portability and Accountability Act of 1996 (HIPAA), 45 C.F.R. Parts 160 and 164, the Texas Medical Records Privacy Act (Texas Health & Safety Code Chapter 181), and the Texas State Board of Examiners in Speech-Language Pathology code of ethics.
- 4.2 Protected Health Information (PHI) Security: All diagnostic protocols, treatment logs, video recordings, and clinical communication are secured in 256-bit AES encrypted, SOC-2 compliant Electronic Health Record (EHR) platforms with strict role-based practitioner access controls.
- 4.3 Permitted Disclosures: Protected Health Information is disclosed solely for treatment coordination, legally mandated child welfare reporting (Texas Family Code § 261.101), compliance audits, or pursuant to a signed, written authorization executed by the Legal Guarantor.

## ARTICLE V: OBSERVATION ROOM, MIRROR, & CLINICAL VIDEO RECORDING AUTHORIZATION

- 5.1 Clinical Observation Glass: The Clinic facilities feature two-way observation mirrors and integrated audio systems designed for parent education, clinical fellow supervision, and sensory observation without triggering child separation anxiety.
- 5.2 Therapeutic Video Recording Authorization: The Legal Guarantor hereby grants permission for licensed clinicians to digitally record portions of therapy sessions strictly for: (a) diagnostic baseline phonetic comparison, (b) sensory feeding progress tracking, (c) licensed speech-language pathologist clinical supervision, and (d) recorded home practice demonstrations provided directly to the parents.
- 5.3 Strict Prohibition on External Use: Under no circumstances will therapeutic clinical recordings be shared, published, or utilized for public marketing, social media, or commercial purposes without separate explicit written consent.

## ARTICLE VI: TELEHEALTH CLINICAL CONSENT & HOME PRACTICE PROTOCOLS

- 6.1 Telepractice Licensure & Standards: Telepractice sessions are delivered in full compliance with Texas Health and Safety Code Chapter 111 and ASHA practice guidelines over high-definition, encrypted, HIPAA-compliant video links.

- 6.2 Pediatric Caregiver Co-Presence Requirement: For pediatric patients under eight (8) years of age, a parent, legal guardian, or designated adult caregiver must remain physically present in the same room throughout the teletherapy session to assist with material handling, tactile prompt reinforcement, and technical connectivity.
- 6.3 Technology & Privacy Environment: The Legal Guarantor agrees to provide a private, quiet room free from domestic distractions (televisions, pets, siblings) and high-speed internet capability to maximize clinical effectiveness.

## ARTICLE VII: SUPERBILL GENERATION SCHEDULE & OUT-OF-NETWORK REIMBURSEMENT

- 7.1 Monthly Superbill Schedule: For families seeking out-of-network reimbursement from private health insurance plans, the Clinic generates comprehensive, itemized Superbills on the first (1st) day of each calendar month covering all therapy sessions completed and paid during the preceding month.
- 7.2 Standard Coding Standards: Each monthly Superbill includes the Clinic's Tax ID, NPI number, supervising SLP license number, standardized American Medical Association CPT procedure codes (e.g., 92507 for Individual Speech/Language Treatment, 92523 for Speech Sound & Language Evaluation, 92526 for Oral Pharyngeal / Feeding Therapy), and exact ICD-10 diagnostic codes.
- 7.3 Reimbursement Disclaimer: The Clinic provides accurate, compliant billing documentation but does not guarantee that any private insurance carrier will reimburse out-of-network claims. The Legal Guarantor is solely responsible for submitting Superbills directly to their insurer's member portal.

## ARTICLE VIII: PROGRESS EVALUATIONS & CLINICAL ESTIMATION DISCLAIMER

- 8.1 Professional Clinical Estimates: Periodic formal progress updates, developmental age equivalencies, and speech intelligibility percentages reflect professional clinical diagnostic evaluations and clinical estimates based on observable behavioral data.
- 8.2 Medical Outcomes Disclaimer: Because pediatric speech, language, and neuro-developmental progression depend on numerous extrinsic and biological variables—including neurological maturation, auditory processing, home practice consistency, and co-occurring developmental diagnoses—the Clinic and its clinicians do not and cannot guarantee specific educational, scholastic, or medical outcomes.

## SIGNATURE BLOCK: LEGAL GUARANTOR ATTESTATION & CLINICAL DIRECTOR ACKNOWLEDGEMENT

By signing below, I certify that I have read, understood, and received a copy of this Master Clinical Intake Agreement, HIPAA Disclosure, and Attendance Policy. I attest that I am the legally authorized Guarantor for the Patient named below and agree to be bound by all terms, including the $75 reserved clinical hour fee policy.

Child / Patient Legal Name: _____

Date of Birth (MM/DD/YYYY): _____ Sex / Gender: _____

Legal Guarantor Full Printed Name: _____

Relationship to Patient (Mother / Father / Legal Guardian): _____

Guarantor Primary Phone: _____ Emergency Mobile: _____

Billing Address: _____

Legal Guarantor Signature: _____ Date: _____

Clinical Director Attestation: Issa Cuevas, M.S., CCC-SLP (Texas Lic #72841, NPI #1982736450)

Clinic Authorized Signature: Issa Cuevas, M.S., CCC-SLP · Date: October 20, 2026